

HOUSE No. 1308

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa and Natalie M. Higgins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting reproductive destiny.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/12/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/7/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>

HOUSE No. 1308

By Representatives Sabadosa of Northampton and Higgins of Leominster, a petition (accompanied by bill, House, No. 1308) of Lindsay N. Sabadosa, Natalie M. Higgins and others relative to health insurance coverage for voluntary female sterilization. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1138 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting reproductive destiny.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12W of said chapter 112, as so appearing, is hereby amended by
2 inserting

3 after the first paragraph the following:-

4 Whenever any physician has reason to believe a person eighteen years or over is unable
5 to give informed consent, including when a person is in a state institution or under guardianship
6 under chapter 190B of the General Laws, no such sterilization shall be performed.

7 SECTION 2: Chapter 118E of the General Laws, as so appearing, is hereby amended by
8 inserting at the end of Section 10N the following new Section:-

9 Section 10O. Expanded Medicaid Coverage for Voluntary Female Sterilization

(1) For purposes of this section, the following words shall have the following meanings:

“Decision Counseling”, a counseling model for providers to ensure patients are fully informed about the effects and permanency of sterilization.

"Informed written consent", a written consent form for the requested provision of voluntary female sterilization.

“Voluntary Female Sterilization”, any medical procedure, treatment, or operation for the purpose of rendering an individual permanently incapable of reproducing performed at the request of the individual.

(2) Coverage of Voluntary Female Sterilization Services:

The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide coverage for voluntary female sterilization even in the event that an individual covered by a Medicaid managed care organization or primary care clinician plan has not fulfilled the federally required 30-day waiting period provided that the individual has completed Decision Counseling and signed an informed written consent.